

U.S. DEPARTMENT OF LABOR
Occupational Safety and Health Administration

INSPECTION REPORT

Inspection Number: 1654892

ESTABLISHMENT INFORMATION

Establishment:	Titan Construction LLC
DBA:	Titan Builders
Site Address:	450 Industrial Blvd, Riverside, CA 92507
Mailing Address:	1200 Commerce Way, Suite 300, Riverside, CA 92507
NAICS Code:	236220 - Commercial Building Construction
Inspection Type:	Accident Investigation
Inspection Date:	February 12, 2024
CSHO:	Robert Martinez, Compliance Safety & Health Officer

ACCIDENT SUMMARY

On February 8, 2024, at approximately 10:15 AM, a 35-year-old female carpenter fell approximately 15 feet from scaffolding at a commercial construction site. The employee sustained a fractured wrist, concussion, and back injuries. The employee was hospitalized.

INSPECTION SCOPE

This was an accident investigation inspection limited to the immediate work area and conditions related to the accident. The inspection included:

- Physical examination of the scaffolding involved in the accident
- Review of safety training documentation
- Interviews with employer representatives and witnesses
- Review of company safety programs and policies
- Photographic documentation of conditions

CITATIONS ISSUED

Citation 1 - SERIOUS**29 CFR 1926.451(g)(1)(vii) - Scaffolding - Guardrail Systems**

The employer did not ensure that guardrail systems were installed along all open sides and ends of platforms. On or about February 8, 2024, at the Riverside Medical Plaza construction site, Building C, second floor, the east side of the scaffolding platform lacked guardrails, exposing employees to fall hazards of approximately 15 feet.

Proposed Penalty: \$15,625

Citation 2 - SERIOUS**29 CFR 1926.502(d) - Fall Protection - Duty to Have Fall Protection**

The employer did not ensure that each employee on a walking/working surface with an unprotected side or edge which was 6 feet or more above a lower level was protected by the use of guardrail systems, safety net systems, or personal fall arrest systems. On February 8, 2024, employees working on scaffolding 15 feet above the floor were not provided with personal fall arrest systems (safety harnesses).

Proposed Penalty: \$15,625

Citation 3 - SERIOUS**29 CFR 1926.21(b)(2) - Safety Training and Education**

The employer did not instruct each employee in the recognition and avoidance of unsafe conditions and the regulations applicable to the work environment to control or eliminate any hazards. Review of training records revealed that the injured employee had not received documented fall protection training within the past 12 months.

Proposed Penalty: \$10,625

Citation 4 - SERIOUS**29 CFR 1926.451(f)(7) - Scaffolding - Competent Person**

A competent person was not present to inspect scaffolding for visible defects before each work shift. Records indicate the safety coordinator was off-site on the day of the accident, and no qualified substitute was assigned to perform required scaffolding inspections.

Proposed Penalty: \$5,625

PENALTY SUMMARY

Citation	Proposed Penalty
Citation 1 - Guardrail Systems	\$15,625
Citation 2 - Fall Protection	\$15,625
Citation 3 - Safety Training	\$10,625
Citation 4 - Competent Person	\$5,625
TOTAL PROPOSED PENALTIES	\$47,500

ABATEMENT REQUIREMENTS

The employer must abate the cited hazards by the following dates:

1. Citation 1: Immediate upon receipt
2. Citation 2: Immediate upon receipt
3. Citation 3: Within 15 calendar days
4. Citation 4: Within 7 calendar days

EMPLOYER RIGHTS

The employer has 15 working days from receipt of these citations to:

- Pay the penalty
- Request an informal conference with the OSHA Area Director
- Contest the citations and/or penalties before the Occupational Safety and Health Review Commission

Robert Martinez
Compliance Safety & Health Officer
OSHA - Region IX

Date: February 22, 2024

Citation Date: February 22, 2024